

Date Of Decision: 07.12.2 vs State Of Punjab And Another on 7 December, 2010

Author: S.S. Saron

Bench: S.S. Saron

IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH

1. Crl. Misc. No. M-16497 of 2010

Date of decision: 07.12.2010

Rajat Gandhi

.... Petitioner

Versus

State of Punjab and another

..... Respondents

2. Crl. Misc. No. M-9425 of 2010

Manju Gandhi and another

.... Petitioners

Versus

State of Punjab and another

..... Respondents

3. Crl. Misc. No. M- 8015 of 2010

Aarti Sareen

.... Petitioner

Versus

State of Punjab and another

..... Respondents

Present : Mr. Munish Behl, Advocate for the petitioners.

Mr. VPS Sidhu, AAG, Punjab.

Ms. Jaspreet Kaur, Advocate for the complainant
with Ms. Ruchika Gandhi @ Ruchika Arora
(respondent No.2) in person.

S.S. SARON, J.

Crl. Misc. No. M-9425 of 2010 Crl. Misc. No. M- 8015 of 2010 This order will dispose of CRM No. M-16497 of 2010, CRM No. M-9425 of 2010 and CRM No. M-8015 of 2010 as they arise out of the same FIR and the respective petitioners in the same seek its quashing.

Rajat Gandhi (petitioner in CRM No. M-16497 of 2010) is the husband of the complainant Ruchika Gandhi @ Ruchika Arora-complainant. Manju Gandhi and Rajinder Gandhi (petitioners in CRM No. M-9425 of 2010) are the parents-in-law of Ruchika Gandhi-complainant and Aarti Sareen (petitioner in CRM No. M-8015 of 2010) is the married sister-in-law (i.e. husband's sister) of the complainant-Ruchika Gandhi.

The petitioners in their respective petitions seek quashing of FIR No.253 dated 1.7.2009 (Annexure P1) registered at Police Station Civil Lines, Amritsar City for the offences under Sections 406 and 498-A Indian Penal Code and all subsequent proceedings arising therefrom on the basis of compromise.

Initially Aarti Sareen (petitioner in CRM No. M- 8015 of 2010) had filed a petition seeking quashing of FIR alleging that the marriage between the complainant Ruchika Gandhi with the brother of the petitioner-Aarti Sareen was solemnized on 17.2.2007. The petitioner Aarti Sareen was married to Bharat Sareen on 04.11.2006. Therefore, she had nothing to do with the matrimonial dispute between Ruchika Gandhi and her husband Rajat Gandhi. During the pendency of the said petition, the matter in CRM No. M-9425 of 2010 was referred to the Mediation Centre. In the Crl. Misc. No. M-9425 of 2010 Crl. Misc. No. M- 8015 of 2010 proceedings of the Mediation Centre, the parties have amicably resolved their dispute and the settlement reached at has been placed on record as Annexure P5 in Crl. Misc. No. M-16497 of 2010. In terms of the settlement reached at, it has inter alia been resolved that Rajat Gandhi would handover a draft of `7,80,000/- to the complainant Ruchika Gandhi in Court when her statement in the case for divorce by mutual consent is recorded by the Court concerned. A sum of `7,80,000/- includes the component of interest as well and Ruchika Gandhi, complainant would not claim the interest nor raise the issue. In all a sum of `15,55,000/- is to be paid by the petitioners to the complainant Ruchika Gandhi for settlement of all the claims. It has been settled that the parties at whose instance the cases are pending would withdraw all the cases within 10 days after the filing of case by mutual consent. A sum of `7,80,000/- has been paid to Ruchika Gandhi at the time when her statement in proceedings under Section 13-B of the Hindu Marriage Act, 1955 was recorded. A draft for an amount of `7,75,000/- bearing No.556626 dated 12.5.2010 drawn on Oriental Bank of Commerce, Service Branch, Chandigarh has been deposited vide receipt No.594 dated 19.7.2010. The draft was in favour of

Registrar, Punjab and Haryana High Court. Therefore, it is submitted that the FIR that has been registered may be quashed.

The statement of the complainant Ruchika Gandhi (respondent No.2) has been recorded separately in Court toady in which she has stated that she has no CrI. Misc. No. M-9425 of 2010 CrI. Misc. No. M- 8015 of 2010 objection to the quashing of FIR No.253 dated 01.7.2009 (Annexure P1) registered at Police Station Civil Lines, Amritsar for the offences under Sections 406 and 498-A IPC. This, however, is subject to the condition that the balance payment of `7,75,000/- is paid to her. The amount of `7,75,000/- is already lying deposited with the Registrar of this Court. Therefore, keeping in view the matrimonial dispute having been amicably settled, it would be just and expedient to terminate the proceedings by quashing the FIR.

Learned State counsel has submitted that in view of the judgment of the Supreme Court in B.S. Joshi and others v. State of Haryana and another, (2003) 4 SCC 675, the State would have no serious objection to the quashing of FIR in case the matrimonial dispute has been amicably settled.

It may be noticed that the matrimonial dispute has indeed been amicably settled and the parties have decided to part ways amicably.

In B.S. Joshi and others v. State of Haryana and another, (2003) 4 SCC 675 it has held by the Supreme Court that for the purpose of securing the ends of justice, if quashing of FIR becomes necessary, Section 320 of the Code of Criminal Procedure ("CrPC" - for short) would not be a bar to the exercise of power of quashing. Besides, the High Court in exercise of its inherent powers can quash the criminal proceedings or FIR or complaint in the case of a matrimonial dispute and Section 320 CrPC does not limit or affect the powers of the High Court under Section 482 CrPC. CrI. Misc. No. M-9425 of 2010 CrI. Misc. No. M- 8015 of 2010 In respect of matrimonial cases. It was rather held that it is the duty of the Court to encourage genuine settlements of matrimonial disputes.

In view of the above, the CrI. Misc. petition is allowed and the impugned FIR No.253 dated 1.7.2009 (Annexure P1) registered at Police Station Civil Lines, Amritsar City for the offences under Sections 406 and 498-A Indian Penal Code and all subsequent and consequential proceedings arising therefrom shall stand quashed. The payment amounting to `7,75,000/- which is lying deposited with the Registrar of this Court be made to the complainant Ruchika Gandhi by making a draft in her favour.

(S.S. SARON) JUDGE December 7, 2010 amit